CAYMAN ISLANDS GOVERNMENT
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21-Apr-2022

GENERAL REGISTRY CAYMAN ISLANDS

EXEMPTED *Foundation Company Registered and filed as No. 389547 On 21-Apr-2022*

Acting Assistant Registrar

THE FOUNDATION COMPANIES ACT, 2017
OF THE CAYMAN ISLANDS

ARTICLES OF ASSOCIATION

OF

QUIDMINT FOUNDATION

An Exempted Foundation Company Limited by Guarantee

Without a Share Capital

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1. DEFINITIONS AND INTERPRETATION

1.1. In **these** Articles, unless the context requires otherwise:

"**Articles**" means these Articles of Association;

"**Board**" means the board of Directors for the time being of the Foundation or the Directors present or deemed to be present at a duly convened quorate meeting of the Directors;

"**Companies Act**" means the Companies Act (2022 Revision), as amended or re-enacted from time to time;

"**Director**" means a Director of the Foundation appointed in accordance with these Articles;

"**Electronic Transactions Law**" means the Electronic Transactions Law (2003 Revision);

"**Foundation**" means the above named company;

"**Foundation Companies Act**" means the Foundation Companies Act, 2017;

"**Interested Person**" has the meaning given to it in the Foundation Companies Act;

"**Laws**" means the Foundation Companies Act (Revised), the Companies Act (Revised) as applicable to Foundation Companies, and every statutory modification or re- enactment of them;

"**Member**" has the same meaning as in the Companies Act;

"**Memorandum**" means the Memorandum of Association of the Foundation;
Officer means any person appointed by the Directors to hold an office in the Foundation;

"**Ordinary Resolution**" means a resolution: (a) passed by a majority of such persons as, being entitled to do so, vote in person or by proxy at a general meeting of the Foundation; (b) approved in writing by all of the persons entitled to vote at a general meeting of the Foundation in one or more instruments each signed by one or more such persons; or (c) approved pursuant to any bylaws then in place.

"**Registrar**" means the Registrar of Companies and includes the Deputy Registrar of Companies;

"**Registered Office**" means the registered office for the time being of the Foundation;

"**Secretary"** means the person appointed to perform any or all of the duties of secretary of the Foundation, including any assistant secretary.

"**Special Resolution**" means a resolution passed at a general meeting of the Foundation Company by not less than a two-thirds majority of votes cast or by a resolution in writing under Clause 11.7;

"**Subscriber**" means the subscriber to the Memorandum;

"**Supervisor**" has the meaning given to it in the Foundation Companies Act; and

"**written**" and "**in writing**" include all modes of representing or reproducing words in visible form.

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1.2. In the Memorandum and these Articles, unless the context otherwise requires a reference to:

(a) words importing the masculine gender include the feminine gender;

(b) unless otherwise stated all references to a law are to a law of the Cayman Islands;

(c) any Cayman Islands law or regulation, is a reference to such law or regulation as a re-enacted from time to time;

(d) the singular includes the plural and vice versa;

(e) a person includes all legal persons and natural persons; and

(f) legal persons include all forms of corporate entity and any other person having capacity to act in its own name created by or in accordance with the laws or regulations of any jurisdiction.

1.3. Headings are for ease of reference only and shall be disregarded in interpreting the Memorandum and the Articles.

2. COMMENCEMENT OF BUSINESS

2.1. **Commencement.** The business of the Foundation Company may be commenced immediately upon registration under the Laws. The Foundation Company's financial year end is 31 December.

2.2. **Pre-Incorporation Acts.** The Foundation Company may ratify any contract or other transaction entered into in its name or on its behalf prior to registration.

2.3. **Commencement Costs and Expenses.** The preliminary expenses of incorporating the Foundation Company shall be paid by the Foundation Company, including any expenses concerning any contract or transaction ratified under Article 2.2.

3. SECRETARY

3.1. **First Secretary.** The first Secretary is Leeward Management Limited, PO Box 144, 3119 9 Forum Lane, Camana Bay, George Town, Grand Cayman, KY1-9006, Cayman Islands.

3.2. **Appointment and Removal.** The Directors may appoint and remove the Secretary or an assistant Secretary provided that there shall at all times be a qualified person as defined under the Law appointed as the Secretary and no Secretary shall cease to hold office until a qualified person has been appointed in the Secretary's place and the Registrar has been notified.

3.3. **Remuneration of Secretary.** The remuneration of the Secretary shall be at such rate and on such terms as agreed in writing by the Secretary and the Directors and otherwise in accordance with its standard terms of business from time to time in effect.

3.4. **Regulatory Laws and Compliance.** The Secretary shall at all times comply with the requirements of regulatory laws as defined in section 2 of the Companies Act (Revised) and shall be entitled to receive from the Foundation Company and any Interested Person such information as the Secretary may reasonably require for such compliance.

4. REGISTERS

4.1. **Register of Interested Persons.** In addition to the registers required to be maintained under the Laws, the Foundation Company shall maintain a register of Interested Persons at its registered office

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which shall, inter alia, record:

(a) the date upon which a person first became an Interested Person, and upon which the person ceased to be an Interested Person;

(b) the name of the currently designated representative of such Interested Person in tl corporate member; and

(c) the postal and email address of the Interested Person in the Islands for service of notices.

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5. MEMBERS

5.1. **First Member**. The initial subscriber to the Memorandum of Association shall be the first member of the Foundation Company.

5.2. **Admission of Members.** Subject to these Articles, the Directors may, if so authorized by a Special Resolution of the Foundation Company, admit as a member any person who has applied for membership in writing, and the terms of admission may restrict, enlarge or exclude any or all of the voting and other rights or powers of members under these Articles, or provide for termination of membership at a specified time or in specified circumstances. The Foundation Company by Special Resolution, may restrict or prohibit the subsequent admission of Members. If the restriction or prohibition is expressed to be irrevocable, it may not be altered or revoked, directly or through an alteration of these Articles.

5.3. **Termination of Membership.** A person's membership of the Foundation Company terminates:

(a) if the person dies or, being a corporation, is dissolved;

(b) if the person resigns as a Member by notice to the Foundation Company. The resignation shall be effective immediately unless the notice states otherwise; or

(c) as provided in the person's terms of admission as a member.

5.4. **No requirement to have Members.** It is not a condition of this Article that the Foundation Company continues to have one or more Members.

5.5. **Rights and powers of Members.** The rights and powers of Members are not assignable and, except as permitted by these Articles or required by law, the rights or powers of a Member may not be exercised by any other person on behalf of the Member.

5.6. **Free of Any Duty.** The rights and powers of Members are free of any duty.

6. DIRECTORS AND OFFICERS

6.1. **Number of Directors**. The Foundation Company shall at all times have at least one Director.

6.2. **Appointment of Directors.** The first Directors may be appointed by the subscribers to the Memorandum of Association. The Foundation Company may subsequently appoint or remove Directors by Ordinary Resolution. The initial Director shall be Richard Tiutiun.

6.3. **Term.** Each Director holds office for the term, if any, fixed by the terms of his appointment or until his earlier death, bankruptcy, insanity, resignation, or removal. If no term is fixed on the

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appointment of a Director, the Director serves indefinitely until his earlier death, bankruptcy, insanity, resignation or removal.

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6.4. **Vacation.** A person ceases to be a Director if removed under the foregoing provisions or:

(a) if the person dies or becomes bankrupt or, being a corporation, is wound-up or is di

(b) if the person resigns as a Director by notice to the Foundation Company. The resignation shall be effective immediately unless (i) the notice states otherwise; or (ii) there are no other Directors in which case the resignation shall be effective upon the appointment of a further Director.

6.5. **Management by Directors.** Subject to these Articles and the bylaws, the business and affairs of the Foundation Company shall be managed by or under the control of the Directors, who may exercise all the powers of the Foundation Company other than those that are required by these Articles or the bylaws to be exercised by the general meeting or others.

6.6. **Chairman of the Board**. The Directors may elect a chairman of their board and determine the period for which he is to hold office; but if no such chairman is elected, or if at any meeting the chairman is not present within five minutes after the time appointed for holding the same, the Directors present may choose one of their number to be chairman of the meeting.

6.7. **Good Faith**. The Directors shall observe these Articles and the bylaws, and shall at all times act in the interests of the Foundation Company and its objects. Each Director shall exercise its powers for a proper purpose. Each Director, in exercising his powers or performing his duties, shall act honestly and in good faith in what the Director believes to be the best interests of the Foundation.

6.8. **Duty.** The duties of the Directors are owed to the Foundation Company only.

6.9. **Remuneration.** Directors' remuneration shall be at such rates and on such terms as may be agreed in writing by an Ordinary Resolution of the Foundation Company.

6.10. **Delegation of Power.** Subject to the Foundation Company's Memorandum of Association, these Articles and the bylaws, the Directors may delegate any of the powers which are conferred on them under the Foundation Company's Memorandum of Association, these Articles and the bylaws:

(a) to such person, committee, or decentralized governance process;

(b) by such means (including by power of attorney);

(c) to such an extent;

(d) for such period or periods of time;

(e) in relation to such matters or territories; and

(f) on such terms and conditions, as they think fit.

If the Directors so specify, any such delegation may authorize further delegation of the Directors' powers by any person to whom they are delegated. The Directors may revoke any delegation in whole or part, or alter its terms or conditions.

6.11. **Committees.** Committees to which the Directors delegate any of their powers must follow

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procedures which are based as far as they are applicable on those provisions of the Foundation Company's Memorandum of Association, these Articles and the bylaws which govern the taking of decisions by Directors.

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6.12. **Committee Parameters.** The Directors may make rules of procedure for all of any committees, which prevail over rules derived from these Articles if they are not consistent with them.

6.13. **Officers.** Notwithstanding the above, the Directors may appoint such Officers as they consider necessary or desirable on such terms, at such remuneration and to perform such duties, and subject to such provisions as to disqualification and removal as the Directors may think fit. Unless otherwise specified in the terms of their appointment an Officer may be removed by resolution of the Directors.

6.14. **Indebtedness and Security.** The Directors may exercise all the powers of the Foundation to incur indebtedness, liabilities or obligations and to issue debentures, debenture stock, mortgages, bonds and other such securities and to secure indebtedness, liabilities or obligations whether of the Foundation or of any third party.

7. DIRECTORS MEETINGS

7.1. **Directors' Reports.** The Directors shall give to the general meeting (or the persons who have the right to attend the general meeting) such reports, accounts, information and explanations concerning the business and affairs of the Foundation Company, and the discharge of the Directors' duties and the exercise of their powers, as may be required by an Ordinary Resolution of the Foundation Company.

7.2. **Director Voting.** Except as otherwise provided by these Articles, the Directors shall meet together for conducting business, convening, adjourning and otherwise regulating their meetings as they think fit. Questions arising at any meeting shall, unless the Laws or the Foundation Company's Memorandum of Association, these Articles or the bylaws otherwise provide, be decided by a majority of votes of the Directors present. Each Director shall have one vote. In case of an equality of votes, the chairman of the meeting shall have a second or casting vote.

7.3. **Notice of Meetings**. A Director may, or other Officer on the requisition of a Director shall, call a meeting of the Directors by at least five days' notice in writing to every Director which notice shall set forth the general nature of the business to be considered unless notice is waived by all the Directors either at, before or after the meeting is held.

7.4. **Quorum.** The quorum for the transaction of the business of the Directors may be fixed by the Directors, and unless so fixed shall be two if there are two or more Directors and shall be one if there is only one Director. A person who holds office as an alternate Director shall be counted in the quorum. A Director who also acts as an alternate Director shall count twice towards the quorum.

7.5. **Meeting Minutes.** Minutes of all meetings of the Directors shall be signed by the chairman of the meeting or the next succeeding meeting and a copy of the minutes shall be circulated to all Directors and the Secretary within fourteen days after the meeting and in any event before the next scheduled meeting.

7.6. **Unanimous Written Resolution.** A resolution in writing signed by all the Directors for the time being shall be as valid and effectual as if it had been passed at a meeting of the Directors duly convened.

7.7. **Electronic Participation.** A meeting of the Directors may be held, and any Director may participate

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in a meeting, by means of a telephone conference or similar communications equipment by means of which all persons participating in the meeting are capable of hearing each other, and such participation shall be deemed to constitute presence in person at the meeting.

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8. DIRECTORS' INTERESTS

8.1. **Other Office.** A Director may hold any other office or place of profit under the Foundation (other than the office of auditor), including that of Supervisor, in conjunction with its office of Director for such period and on such terms as to remuneration and otherwise as the Directors may determine. A Director may act by itself or its firm in a professional capacity for the Foundation and its firm shall be entitled to remuneration for professional services as if it were not a Director or alternate Director.

8.2. **No Exclusivity.** A Director or alternate Director may be or become a director or other officer of or otherwise interested in any company promoted by the Foundation or in which the Foundation may be interested as shareholder or otherwise, and no such Director or alternate Director shall be accountable to the Foundation for any remuneration or other benefits received as a director or officer of, or from its interest in, such other company.

8.3. **Disclosure of Interests.** No person shall be disqualified from the office of Director or alternate Director or prevented by such office from contracting with the Foundation, either as vendor, purchaser or otherwise, nor shall any such contract or any other contract or transaction entered into by or on behalf of the Foundation in which any Director or alternate Director shall be in any way interested be or be liable to be avoided, nor shall any Director or alternate Director so contracting or being so interested be liable to account to the Foundation for any profit realized by any such contract or transaction by reason of such Director holding office or of the fiduciary relation thereby established. A Director (or its alternate Director in its absence) shall be at liberty to vote in respect of any contract or transaction in which it is interested provided that the nature of the interest of any Director or alternate Director in any such contract or transaction shall be disclosed by said Director at or prior to its consideration and any vote thereon.

8.4. **General Notice of Interests.** A general notice that a Director or alternate Director is a shareholder, director, officer or employee of any specified firm or company and is to be regarded as interested in any transaction with such firm or company shall be sufficient disclosure for the purposes of voting on a resolution in respect of a contract or transaction in which such Director has an interest, and after such general notice it shall not be necessary to give special notice relating to any particular transaction.

9. SUPERVISORS

9.1. **Initial Supervisor.** The initial Supervisor Director shall be Richard Tiutiun.

9.2. **Minimum Number of Supervisors.** The Foundation shall have, at all times, at least one Supervisor who is able and willing to supervise the management of the Foundation. If this requirement is not met, the Foundation shall, by Ordinary Resolution, appoint one or more Supervisors to make up the shortfall, failing which the Directors shall apply to the Court under section 19(2) of the Foundation Companies Act. Such Ordinary Resolution appointing a Supervisor may:

(a) restrict, enlarge or exclude any or all of the voting and other rights or powers of Supervisors under these Articles;

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(b) impose any supervisory or other duty or disability, grant a related exculpation, and waiv conflicting interests or duties;

(c) give the Supervisor rights to remuneration or indemnity by the Foundation Company; and

(d) provide for the termination of the Supervisor's appointment at a specified time or i circumstances.

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9.3. **Vacation.** A person ceases to be a Supervisor:

(a) if the person dies or becomes bankrupt or, being a corporation, enters into winding- up or is dissolved;

(b) if the person resigns as a Supervisor by notice to the Foundation Company. The resignation shall be effective immediately unless the notice states otherwise;

(c) if the person acquires any interest or duty that conflicts with any duty of the person as a Supervisor, unless authorized by a Special Resolution of the Foundation Company;

(d) if the person absents themselves from three consecutive meetings of the Supervisors without special leave of absence from the Directors, and they pass a resolution that he has by reason of such absence vacated office;

(e) as provided in the person's terms of appointment as a Supervisor.

9.4. **Powers.** A Supervisor:

(a) may require access during normal working hours to the files, books, accounts and records of the Foundation Company;

(b) may by notice to the Foundation Company call for such reports, accounts, information and explanations from the Directors as to the administration of the Foundation Company as are described in the notice;

(c) has the right to receive notice of, and attend and vote at, general meetings; and

(d) shall observe the Foundation Company's Memorandum of Association, these Articles and the bylaws.

The powers granted to a Supervisor under these Articles may only be exercised in the interests of the Foundation Company and its objects.

9.5. **Duty.** Any duties of a Supervisor are owed to the Foundation Company only.

9.6. **Remuneration.** The remuneration of a Supervisor shall be at such commercially reasonable rate and on such terms as agreed in writing by the Supervisor and the Directors and otherwise in accordance with its standard terms of business from time to time in effect.

10. BENEFICIARIES

10.1. **Designation of Beneficiaries.** The Director's have the power, exercisable by notice to the

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Foundation Company:

(a) to designate persons or descriptions of persons as beneficiaries, conditionally or unconditionally;

(b) to give directions as to the benefits which a beneficiary will or may receiv Foundation Company;

(c) to declare that the beneficiary shall have an enforceable right to receive benefits from the Foundation Company, or any other rights in or against the Foundation Company, or that the beneficiary is an Interested Person for any or all of the purposes of the Foundation Companies Act (Revised); and

(d) to revoke or vary any such designation, direction or declaration.

10.2. **Beneficiary Rights.** Subject to any unrevoked declaration under Clause 10.1(c) a beneficiary does not, as such, have any rights, powers or interests in or against the Foundation Company, the Directors, the Officers, the Supervisors, or any property of the Foundation Company except:

(a) the right to retain any benefit that has been properly conferred upon the beneficiary by the Foundation Company; and

(b) the right, exercisable by notice to the Foundation Company, to terminate the beneficiary's status as a beneficiary.

11. GENERAL MEETINGS

11.1. **Meetings.** The Foundation shall convene a general meeting when required to do so by written requisition of:

(a) any person who has the right to attend general meetings, or

(b) the Directors.

11.2. **Notice of Meetings.** The persons who have the right to receive notice of, and to attend and have one vote each at, general meetings are:

(a) any members;

(b) the Supervisors; and

(c) any beneficiary to whom the right has been granted by an unrevoked declaration under Clause 10.1(c).

General meetings shall be convened by not less than twenty-one days' notice (exclusive of the day on which the notice was served) to everyone entitled to attend, unless all persons entitled to attend agree to short notice (or no notice). The notice shall state the place, day and hour of the meeting and the general nature of the business to be transacted.

11.3. **Failure to give Individual Notice** The accidental omission to give notice of a general meeting to any person so entitled or the non-receipt of a notice of a meeting shall not invalidate the proceedings at that meeting.

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11.4. **Quorum.** No business shall be transacted at a general meeting unless a quorum is present in person or by proxy when the meeting proceeds to business. The quorum is a majority of the persons entitled to attend.

11.5. **Procedure.** At any general meeting of the Foundation Company, unless the Laws or the Company's Memorandum of Association, these Articles or the bylaws otherwise provide, every motion proposed shall be decided by Ordinary Resolution of those present in person or by proxy and entitled to vote.

11.6. **Unanimous Written Consent.** A resolution in writing signed by all persons for the time being entitled to vote at general meetings shall be as valid and effective as if the same had been passed at a general meeting of the Foundation Company duly convened and held.

11.7. **Electronic Participation.** A general meeting may be held, and any person may participate in a meeting, by means of a conference telephone or similar communications equipment by means of which all persons participating in the meeting are capable of hearing each other, and such participation shall be deemed to constitute presence in person at the meeting.

11.8. **Director Participation**. Directors may attend and speak at any general meeting.

12. PROXIES

12.1. **Proxies.** Any person entitled to attend and vote at a general meeting of the Foundation Company may by written instrument under hand, or if the appointor is a corporation, either under the corporation's seal or under the hand of an Officer or attorney duly authorized, appoint a proxy to represent at the general meeting of the Foundation Company.

12.2. **Form of Proxy.** The instrument appointing a proxy may be in any usual or common form or as otherwise acceptable to the Chairman of the meeting for which the instrument is first presented.

13. ACCOUNTS

13.1. The Directors shall cause proper books of account to be kept for:

(a) all funds received or expended or distributed by the Foundation Company and the matters in respect of which the receipt or expenditure takes place; and

(b) the assets and liabilities of the Foundation Company, and proper books of account shall not be deemed to be kept if there are not kept such books as are necessary to give a true and fair view of the state of the Foundation Company's affairs and to explain its transactions. Such books shall be kept at the registered office or such other place as may be determined by Special Resolution of the Foundation Company.

13.2. **Inspection.** The books of account shall be open at any time in ordinary business hours to inspection by a Supervisor and any other person to whom a right of access has been granted under the Foundation Company's Memorandum of Association, these Articles or the bylaws.

13.3. **Requirement for Reports.** By notice to the Foundation Company a Supervisor may call for such reports, accounts, information and explanations from the Directors as to the administration of the Foundation Company as are described in the notice.

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14. AUDITORS

14.1. The Foundation Company may (but shall not be required) by Ordinary Resolution at any time appoint or replace an auditor or auditors of the Foundation Company. The remuneration of an auditor shall be fixed by Ordinary Resolution.

14.2. Every auditor shall have a right of access at all times in ordinary business hours to the books of account of the Foundation Company and shall be entitled to require from the Directors and Officers of the Foundation Company such information and explanation, and access to vouchers and other documents, as the auditor considers necessary for the performance of the auditor's duties.

15. WINDING-UP

15.1. **Voluntary Liquidation.** Subject to the Companies Act and these Articles the Foundation may, by Special Resolution, be wound up voluntarily.

15.2. **Liquidator.** If the Foundation shall be wound up, the Directors or such person as they shall appoint shall be the liquidator.

15.3. **Authority to Wind-Up.** Members, Director, and Supervisors as such have no power or authority to wind up the Foundation Company or petition the Court to wind up the Foundation Company, except in the case of insolvency, for the purposes of a bona fide reorganization intended to enable the Foundation Company to carry out its objects more efficiently, or if the objects for which the Foundation has been established have been frustrated before it has started its operations.

16. INDEMNITY AND INSURANCE

16.1. In this Article :

(a) An "**Indemnified Party**" means each of the Directors, Supervisors, Secretary, and other officers of the Foundation Company for the time being and any trustee for the time being acting in relation to any of the affairs of the Foundation Company and their heirs, executors, administrators and personal representatives respectively.

(b) "**Liabilities**" means all liabilities, costs, charges, losses (including consequential losses), damages, fees, expenses (including legal and other professional fees and expenses), judgments, fines, penalties, interest, settlements, and other amounts (including, without prejudice to the generality of the foregoing, any Liabilities in respect of or in connection with any Proceedings).

(c) "**Proceedings**" means all suits, proceedings, demands, claims, and actions, of whatsoever kind whether civil, criminal, administrative, investigative, regulatory or otherwise.

(d) References in this Article to "**actual fraud**" or "**wilful default**" mean a non- appealable finding to such effect by a competent court in relation to the conduct of the Indemnified Party.

16.2. Each Indemnified Party shall, to the fullest extent permitted by law, be indemnified on an after tax basis out of the assets of the Foundation Company from and against all Liabilities which the Indemnified Party shall or may incur or sustain (provided that no Indemnified Party shall be entitled to indemnification with respect to any Liability to the extent such Liability resulted from any act or omission that constitutes actual fraud or willful default on the part of the Indemnified Person):

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(a) by reason of any act done or omitted to be done, in connection with the business and activities of the Foundation Company;

(b) by reason of such person being a Member, Director, Supervisor, Secretary, trustee or Officer; or

(c) in or about the execution of their duty as a Member, Director, Supervisor, Secretary or Officer.

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16.3. Unless the same shall result from any act or omission that constitutes the actual fraud or wilful default by the Indemnified Party, no Indemnified Party shall be liable or answerable for:

(a) the acts, receipts, neglects or defaults of any other Indemnified Party;

(b) joining in any receipt for the sake of conformity;

(c) the solvency or honesty of any banker or other persons with whom any monies, securities or tokens belonging to the Foundation Company may be lodged or deposited for safe custody;

(d) any insufficiency of any security upon which any monies of the Foundation Company may be invested;

(e) acting on any advice or opinion given by legal advisers to the Foundation Company;

(f) any Liabilities due to any such cause as aforesaid; or

(g) any other Liabilities which the Foundation Company shall or may incur or sustain (i) by reason of any act done or omitted, in connection with the business and activities of the Foundation Company; (ii) by reason of such person being a Member, Director, Supervisor, Secretary, trustee or officer; or (iii) in or about the execution of their duty in their respective offices or trusts.

16.4. To the fullest extent permitted by law, amounts incurred by an Indemnified Party in defending or otherwise in connection with any Liability or Proceedings (whether as a party or otherwise), shall from time to time be advanced by the Foundation Company prior to a final non-appealable finding of a competent court that the Indemnified Party is not entitled to be indemnified, upon receipt by the Foundation Company of an undertaking by or on behalf of the Indemnified Party to repay such amounts if there shall be a final non appealable finding of a competent court that the Indemnified Party is not entitled to be indemnified**.**

16.5. The indemnification provided by this Article shall be in addition to any other rights to which an Indemnified Party may be entitled under any agreement, as a matter of law or otherwise, both as to actions in the Indemnified Party's capacity as an Indemnified Party and as to actions in any other capacity, and shall continue as to any Indemnified Party who has ceased to serve in the capacity in which such Indemnified Party became entitled to indemnification under this Article.

16.6. No amendment, modification or repeal of this Article or any other provision of these Articles shall in any manner terminate, reduce or impair the right of any past, present or future Indemnified Party to be indemnified by the Foundation Company or the obligations of the Foundation Company to indemnify any such Indemnified Party under and in accordance with the provisions of this Agreement as in effect immediately prior to such amendment, modification or repeal with respect to any Liability, arising from or relating to matters occurring, in whole or in part, prior to such amendment, modification or repeal, regardless of when such Liability may arise or be asserted.

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16.7. Any amendment, modification or repeal of this Article (or that otherwise affects this Article) that limits its scope shall be prospective only and shall not in any way affect the limitations on the liability of the Indemnified Parties under this Article as in effect immediately prior to such amendment, modification or repeal with respect to any Liability, arising from or relating to matters occurring, in whole or in part, prior to such amendment, modification or repeal, regardless of when such Liability may arise or be asserted, provided that the Indemnified Party became an I[illegible] Party hereunder prior to such amendment, modification or repeal.

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16.8. The Directors, on behalf of the Foundation Company, may purchase and maintain insurance for the benefit of any Indemnified Person against any Liabilities or Proceedings.

17. BYLAWS

17.1. **Adoption of Bylaws.** The Foundation Company may adopt bylaws that are not inconsistent with the Laws or the Memorandum of Association or these Articles by written resolution of the Directors.

17.2. **Scope of Bylaws.** Bylaws may relate to any aspect of the business or affairs of the Foundation Company, or any of the duties or powers of the Directors or their delegates, or others who have duties or powers under these Articles including the way of achieving the Foundation Company's objects, the benefitting of beneficiaries, the investment, management and protection of the Foundation Company's assets, the remuneration of Directors and their delegates, the delegation of the Directors' duties and powers, the supervision of the management of the Foundation Company, and the appointment of advisers and other service-providers.

17.3. **Revocation of Bylaws.** The bylaws may be varied or revoked by Special Resolution of the Foundation Company.

17.4. The adoption or variation of bylaws shall not render any Director or other person liable for prior conduct.

17.5. No third party dealing in good faith with the Foundation Company need be concerned with the bylaws or their observance.

18. ALTERATION OF MEMORANDUM AND ARTICLES

Subject to the Foundation Companies Act and the Companies Act and the terms of the Memorandum or these Articles restricting alteration, the Foundation may by Special Resolution change its name or alter or amend these Articles and/ or the Memorandum in whole or in part.

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Date: 21 April 2022

SUBSCRIBER

Leeward Management Limited
PO Box 144
3119 9 Forum Lane
Camana Bay
George Town
Grand Cayman KY1-9006
Cayman Islands

EXEMPTED Foundation Company Registered and filed as No. 389547 On 21-Apr-2022

Acting Assistant Registrar

.....
Glenn Kennedy
Authorised signatory for
Leeward Management Limited

.....
Beatriz Bueno Dorea
Witness to the above signature

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